



City of Springboro
MUNICIPAL RECORDS COMMISSION
PUBLIC RECORDS RELEASE POLICY

Revised September 26, 2007

(Adopted under Resolution R-07-46 on October 4, 2007)

PURPOSE:

The city of Springboro maintains, for public view, many documents and records. In accordance with the state law, and the Records Commission for the City of Springboro, a Schedule of records retention and destruction has been established. The Records Retention Schedule lists all records and the period of time they are maintained. These records are maintained for the operation of City offices and to provide a source of information for the public we serve. It is the primary goal of the City that it serves the citizens of Springboro in a manner of trust. These records, and the ability to have access to them, are a means to provide trust between citizens and the City of Springboro. The underlying purpose of the Springboro Records Release Policy is to provide for full and prompt disclosure of public records and assure that City employees take all reasonable steps to comply with proper requests for public records.

DEFINITIONS

"Public Records" are documents, devices, or items regardless of physical form or characteristic, including an electronic record as defined in section 1306.01 of the Revised Code, created or received by or coming under the jurisdiction of the City "... WHICH SERVES TO DOCUMENT THE ORGANIZATION, FUNCTION, POLICIES, DECISIONS, PROCEDURES, OPERATIONS, OR OTHER ACTIVITIES OF THE OFFICE." (149.011(G))

Provided However, they shall not include those items specifically excluded from the definition of Public Record under Ohio Revised Code section 149.43(A)(1) as amended from time to time.

MAINTAINING PUBLIC RECORDS

Public Records shall be organized and maintained in a manner which facilitates inspection and shall be retained pursuant the applicable Record Retention Policy established by the City.

HANDLING REQUESTS

Public Records will be made available for inspection to any person at reasonable times during regular business hours. The regular business hours for the City are from 8 a.m. to 4:30 p.m. Monday through Friday, excluding legal holidays. All request for Public Records shall be subject to Ohio Revised Code section 149.43(B)(8) (dealing with requests by incarcerated persons).

Requests for Inspection. A request to inspect all public records responsive to an inspection request shall be promptly compiled and made available for inspection by the public

office or person responsible for the public records at all reasonable times during regular business hours. The City may require that a City employee be present during the inspection but shall not deny an inspection if no employee is available.

Requests for Copying. Upon request, all public records responsive to a request shall be copied by a City employee and made available within a reasonable amount of time. A department within the City may establish its own policy for what it charges for copies provided the costs (if any) is limited to the cost of copying. Cost of copying is currently \$.10/per page for standard copies. The first 24 pages of copies are free. Any copies over 24 you will be charged for all copies. The City may require payment in advance. The City will require payment in full at time of distribution.

Requests for Mailing. Upon request, all public records responsive to a request shall be compiled and shall be mailed to the Requestor within a reasonable time, provided the Requestor has provided the necessary mailing information. A department within the City may establish its own policy for charging for postage and copies provided the costs (if any) are limited to the actual cost of postage and cost of copying. The City may require payment in advance. The City will require payment in full at time of distribution.

Requests for Video and Audio. Upon request, all public records responsive to a request shall be compiled. Persons requesting copies of audio or video records are required to furnish blank recording tapes or discs, of sufficient quality, to allow reproduction of the requested material.

Requests for Photographs Upon request, all public records responsive to a request shall be compiled. Persons requesting photographs pursuant to this policy shall be charged only the actual cost incurred by the department for the reproduction of these photographs. *Photographs* of police officers, firefighters or EMTs that identifies their occupation shall not be disclosed.

Requests for Electronic Media Upon request, all public records responsive to a request shall be compiled. If any person chooses to obtain a copy of a public record that is in an electronic format, the City may require that person to pay in advance the cost involved in providing the copy of the public record in accordance with the choice made by the person seeking the copy. The Requestor may choose to have the public record duplicated (i) upon paper, (ii) upon the same medium upon which the public office or person responsible for the public record keeps it, or (iii) upon any other medium upon which the City determines that it reasonably can be duplicated as an integral part of the normal operations of the City.

Request Form. *Requests for public records may be written or oral.* If a public records request is made orally and cannot be immediately fulfilled, then the person receiving the request will write down the request on a Request Form and read it back to the Requestor to make sure the request is accurate. If a request is written, the date the request was received shall be indicated on a Request Form and the written request shall be attached to the Request Form. A Request Form need not be completed for standard and customary requests that are fulfilled at the time of the request. Standard and customary oral requests are requests for a specific, readily accessible record which can be immediately fulfilled.

If the party receiving the request does not have the authority to respond to the request, or have custody of the requested documents, he or she shall obtain the necessary information to fulfill the request by completing a Request Form and shall forward the completed Request Form to the Clerk of Council's office for further handling. Receiving a Public Records Request with the City Law Director prior to responding to the request is appropriate. It is the policy of the City that all public records requests be responded to, as appropriate, in a reasonable amount of time given the nature of the request and the circumstances of the request.

If a Requestor makes an ambiguous or overly broad request or has difficulty in making a request for copies or inspection of public records such that the employee taking the request and the person responsible for the requested public record cannot reasonably identify what public records are being requested, the employee or the person responsible for the requested public record may deny the request but shall provide the Requestor with an opportunity to revise the request by informing the Requestor of the manner in which records are maintained by the public office and accessed in the ordinary course of the public office's or person's duties.

The City may be liable for statutory damages if it fails to comply in accordance with Ohio law with a written request for records that is delivered to the City by hand delivery or certified mail. The requested records shall be reasonably provided.

EXCLUDING INFORMATION

Determining that a requested document or any information contained in a document is not a public record and therefore not subject to disclosure or that a document is exempt from disclosure is a serious action. Accordingly all decisions to deny a public records request or to redact information from a document which is also a denial shall be excused by and signed off on by the appropriate division head or in his or her absence by the City Manager. Consultation with the Law Director is always appropriate.

If a public record contains information that is exempt from the duty to permit public inspection or to copy the public record, the office or the person responsible for the public record shall make available all of the information within the public record that is not exempt.

If it is not clear whether the record is one that can be released, the Requestor should be told that it is not clear if a public record can be released and that the City will allow inspection or provide copies to the extent permissible as soon as legal counsel has had an opportunity to review the request. The employee shall indicate on the request form the nature of the employee's concern. A copy of the Request Form shall then be immediately sent to the Clerk of Council's office for handling.

Redacting information from a public record is considered a denial of a public record. When making a public record available for public inspection or copying that has had information redacted, the City shall notify the Requestor of the redaction or make the redaction plainly visible.

If a request is ultimately denied, in part or in whole, (which includes any redactions) the employee shall complete a Denial Form and shall provide the Requestor with a written explanation, including legal authority, why the request was denied or information redacted. Provided, however, if the denial is a "redaction in the ordinary course" a Denial Form is not required, but the Requestor must still receive the Written Explanation for Denial of Records Request, if the request was in writing. If the request was oral, the Requestor may be told orally why the request was denied. A "redaction in the ordinary course" is a redaction that is always done on a particular class of record such as eliminating social security numbers from a police report.

If a single Requestor makes a single request for multiple records, only one Denial Form and Written Explanation for Denial of Records Request, need be completed for the request but each reason for denial shall be indicated on the forms.

PUBLIC RECORDS REQUEST FORM
(For official use only)

Type of Request:

☐ *Requests for Inspection*

☐ *Requests for Copies*

☐ *Requests for Mailing**

☐ *Requests for Video and Audio*

☐ *Requests for Photographs*

☒ *Requests for Electronic Media*

Date of Request: 07/05/2026

Time of Request: 5:00pm

Date Request was Received _____ (for written requests attach to this form)

Request Made to: _____ Department _____

Requested Records: (Attached additional pages if necessary. If request was in writing attach written request)

I am requesting information about any code violations related to tall grass and trash/debris over the past 30 days.

Does Requestor have preference of form of copies?

Yes ☐ No ☐

If yes indicate form of preference Digital copies emailed to me

(Note: the City may not have the copies in form requested)

For oral requests, did the Requestor read the above request or have it read to him/her?

Yes ☐ No ☐

If no, indicate reason: _____

Reason that the request has not been fulfilled: (Must be answered by Division Head or City Manager)

CLERK OF COUNCIL'S OFFICE ONLY

Date Request was fulfilled: _____

If Request was denied in whole or part attach Denial form.

** for mailings indicate necessary mailing information:*

PUBLIC RECORDS REQUEST FORM
Instructions for City Employee:

It is the policy of the City that all public records requests be responded to, as appropriate, in a reasonable amount of time given the nature of the request and the circumstances of the request.

This form is to be completed upon receipt of a request for public records that is not immediately fulfilled. The City employee taking the request should put his/her name on the line marked "Request Made to ____" and indicated his/her department on the next line "Department ____".

If you do not have the authority to respond to the request, or do not have custody of the requested documents, complete this form and immediately forward it to the Clerk of Council's office. The Clerk of Council is the Public Records Administrator.

Public records requests may be written or oral. if a public records request is made orally, write down the request on this form and read it back to the requesting party to make sure the request is accurate. If the request is written, complete this form and attach the written request.

If you were not able to understand the request, you must inform the requestor of the right to revise the request and advise the requestor of the manner in which records are kept and accessed in the ordinary course of the City's operation.

If you are not sure whether the record is one that can be released, you should advise the Division Head/Requestor of that fact and that the City will allow inspection or provide copies to the extent permissible as soon as our Public Records Administrator has had an opportunity to review this request. Immediately provide the Division Head (City Manager) with a copy of the Request Form which must contain a brief description of your concern and/or question.

If a Requestor makes an ambiguous or overly broad request or has difficulty in making a request for copies or inspection of public records such that the employee taking the request or the person responsible for the requested public record cannot reasonably identify what public records are being requested, the employee or the person responsible for the requested public record may deny the request but shall provide the Requestor with an opportunity to revise the request by informing the Requestor of the manner in which records are maintained by the public office and accessed in the ordinary course of the public office's or person's duties.

Requests for Inspection. The City may require that a City employee be present during the inspection but shall not deny an inspection if no employee is available.

Requests for Video and Audio. Persons requesting copies of audio or video records are required to furnish blank recording tapes, of sufficient quality, to allow reproduction of the requested material. Attach policy?

Requests for Photographs Persons requesting photographs shall be charged only the actual cost incurred by the department for the reproduction of these photographs. Photographs of police officers, firefighters or EMTs that identifies their occupation are not to be disclosed.

Requests for Electronic Media If a Requestor chooses to obtain a copy of a public record that is in an electronic format, he/she shall pay in advance the cost involved in providing the copy of the public record in accordance with the choice made by the person seeking the copy. The Requestor may choose to have the public record duplicated upon paper, upon the same medium upon which the City keeps it, or upon any other medium upon which the City determines that it reasonably can be duplicated as an integral part of the normal operations of the City.

DENIAL OF PUBLIC RECORDS REQUEST
(For official use only)
(To be completed by the Public Records Administrator)

Date of Request: _____ Time of Request: _____

Request Made to: _____ Department: _____

Person Denying Request: _____ Department: _____

Date of Denial: _____

Reason for Denial/Retraction

☐ Medical Records ☐ Trial preparation records ☐ Attorney-client privileged

☐ Taxpayer Records ☐ Social Security Numbers ☐ Security /Infrastructure Records

☐ Trade Secrets ☐ Record Not Kept by City ☐ Police/fire/EMS Familial Info

☐ Law Enforcement ☐ Recreation Activities ☐ Other: _____
Investigatory Records of People Under Age 18

☐ Written reason for denial/redaction given to Requestor

☐ Oral reason for denial/redaction given to Requestor

Public Records Administrator/City Employee Instructions:

Redacted information is considered a denial in part of a public record request and the requestor must be provided with explanation for redaction.

When making a public record available for public inspection or copying that has had information redacted, you must notify the Requestor of the redaction or make the redaction plainly visible.

If a public record contains information that is exempt from the duty to permit public inspection or to copy the public record, you must still make available all of the information within the public record that is not exempt.

If it is not clear whether the record is one that can be released, the Requestor should be told that it is not clear if a public record can be released and that the City will allow inspection or provide copies to the extent permissible as soon as legal counsel has had an opportunity to review the request. You must then indicate on the Request Form the nature of the employee's concern (Do not use the Denial Form under this circumstance). A copy of the Request Form shall then be immediately sent to the Division Head/Public Administrator/City Manager's office for handling.

If a request is ultimately denied, in part or in whole, (which includes any redactions) you must complete this Denial Form and provide the Requestor with the Written Explanation for Denial of Records Request form (which is an explanation, including legal authority, why the request was denied or information redacted).

If the denial is a "redaction in the ordinary course" this Denial Form is not required, but the Requester must still receive the Written Explanation for Denial of Records Request, if the request was in writing. If the request was oral, the Requester may be told orally why the request was denied. A "redaction in the ordinary course" is a redaction that is always done on a particular class of record such as eliminating social security numbers from a police report.

If a Requestor request records that the City does not maintain, (For example, requesting copies of all traffic accident reports filed on one particular date, but the office files them alphabetically by driver name) the request may be denied but only after providing the Requestor with an opportunity to revise the request by informing the Requestor of the manner in which records are maintained and accessed in the ordinary course of the public office's or person's duties.

If a Requestor makes an ambiguous or overly broad request or has difficulty in making a request for copies or inspection of public records such that the employee taking the request, the person responsible for the requested public record cannot reasonably identify what public records are being requested, the employee or the person responsible for the requested public record may deny the request but shall provide the Requestor with an opportunity to revise the request by informing the Requestor of the manner in which records are maintained by the public office and accessed in the ordinary course of the public office's or person's duties.

WRITTEN EXPLANATION FOR DENIAL OF RECORDS REQUEST.

Thank you for your recent records request. However, pursuant to Ohio law we are not able to fill your request in whole or in part (i.e. a redaction) for one or more of the reasons set forth below (There may be more reasons for the City not fulfilling your request that are not set forth in this document).

_____ **Medical records** pertinent to a patient's medical history, diagnosis, prognosis or medical condition and that were generated and maintained in the process of medical treatment are not public records. *Ohio Revised Code Ann. §149.43(A)(1)(a) and (A)(3); Bartley v. Little (Dec. 28, 2000), Muskingum App. No. CT99-16, 2000 Ohio App. LEXIS 6238*

_____ **Trial preparation records** that were specifically compiled in reasonable anticipation of, or in defense of, a civil or criminal action or proceeding are not public records. *Ohio Revised Code Ann. §149.43(A)(1)(g) and (A)(4); State ex rel. Police Officers for Equal Rights v. Lashutka (1995), 72 Ohio St.3d 185, 1995 Ohio 19, 648 N.E.2d 208*

_____ **Confidential Law Enforcement Investigatory Records** which pertain to a law enforcement matter of a criminal, quasi-criminal, civil or administrative nature, and create a high probability of disclosing the identity of an uncharged suspect, confidential source, specific confidential investigatory technique and/or procedure, investigatory work product, or would endanger the life or physical safety of law enforcement personnel, a crime victim, a witness or confidential information source are not public records. *Ohio Revised Code Ann. §149.43(A)(1)(h) and (A)(2) and (A)(2)(a)-(d); Bartley v. Little (Dec. 28, 2000), Muskingum App. No. CT99-16, 2000 Ohio App. LEXIS 6238*; Rules governing LEADS restrict the dissemination of information accessed through LEADS "to the use of duly authorized law enforcement and/or criminal justice agencies for the administration of criminal justice[.]" and state specifically: "The data shall not be sold, transmitted, or disseminated to any non-law enforcement agency, non-criminal justice agency or unauthorized person." *Ohio Attorney General Opinion No. 2003-025; 10 Ohio Admin. Code 4501:2-10-06(B); 2921.129(D) Ohio Revised Code*.

_____ **Security and Infrastructure Records** which contain information directly used for protecting or maintain the security of a public office against attack, interference, or sabotage, or to prevent, mitigate or respond to acts of terrorism, such as the configuration of a public office are not public records. *Ohio Revised Code Ann. §149.43*

_____ **Records Concerning Recreation Activities of People Under Age 18** are not public records *Ohio Revised Code Ann. §149.43(A)(1)(r), §149.43(A)(8), State ex re. McCleary v. Roberts (2000), 88 Ohio St.3d 365*

_____ **Attorney-client privileged information.** Is not required to be released. *State ex rel. Nix v. Cleveland (1998), 83 Ohio St.3d 379, 1998 Ohio 290, 700 N.E.2d 1; Allright Parking of Cleveland, Inc. v. Cleveland (1992), 3 Ohio St.3d 772, 591 N.E.2d 708; Woodman v. Lakewood (1988), 44 Ohio App.3d 118, Cuyahoga App. No. 53647, 541 N.E.2d 1084.*

_____ **Taxpayer Records** may be kept confidential. *Ohio Rev. Code Ann. §718.13.*

_____ **Social Security Number** may be kept confidential. *State ex rel. Beacon Journal Publ. Co. v. City of Akron (1994), 70 Ohio St. 3d 605, 1994 Ohio 6, 640 N.E. 2d 164. See, also, State ex rel. Beacon Journal Publ. Co. v. Kent State University (1993), 68 Ohio St.3d 40, 1993 Ohio 146, 623 N.E.2d 51*

_____ **Family Information of Peace Officer, Firefighter, EMT** are not public records. *Ohio Rev. Code Ann. §149.43(A)(7)(a)*

_____ **Trade Secret** deriving independent value from the fact that it is not generally known and has been the subject of reasonable efforts to maintain its confidentiality need not be disclosed. *Ohio Rev. Code Ann. §1333.61(D). See, also, State ex rel. Besser v. Ohio State University (2000), 87 Ohio St.3d 535, 2000 Ohio 475, 721N.E.2d 1044*

_____ **Not a Record Kept by City.** You have requested a record that is not kept by the City or is not kept in a manner that you requested and you have been advised of the manner in which records are maintained and accessed in the ordinary course. *Zauderer v. Joseph (1989) 62 Ohio App 3d 752.State ex rel. Evans v. Parma (Mar. 13, 2003), Cuyahoga App. No.81236, 2003 Ohio 1159, 2003 Ohio App. LEXIS 1097; Capers v. White (Apr.17, 2002), Cuyahoga App. No. 80713, 2002 Ohio App. LEXIS 1962.*

_____ **Other: Driver's License Number per** Personal Information Systems Act (The Ohio "Privacy Act"), R.C. §1347 Personal information systems and *Ohio Rev. Code Ann. §149.43(v), Records the release of which is prohibited by state or federal law, and with the intent to protect persons from identity theft. (4/2/08)*

PUBLIC RECORDS RELEASE POLICY (POSTER)

The City of Springboro maintains, for public view, many documents and records. In accordance with the state law, and the Records Commission for the City of Springboro, a Record Retention Schedule has been established. This Records Retention Schedule lists all records and the period of time they are maintained. These records are maintained for the operation of City offices and to provide a source of information for the public we serve. It is the primary goal of the City that it serves the citizens of Springboro in a manner of trust. These records, and the ability to have access to them, are a means to provide trust between the citizens and the City of Springboro. The underlying purpose of the Springboro Records Release Policy is to provide for full and prompt disclosure of public records and assure that City employees take all reasonable steps to comply with proper requests for public records.

Requests for Inspection. Public records responsive to a request will be promptly prepared and made available for inspection at all reasonable times during regular business hours. The City may require that a City employee be present during a records inspection.

Requests for Copying or Mailing. Public records responsive to a request will be copied by a City employee and made available within a reasonable amount of time. For mailings, you must provide the necessary mailing information. However, your name is not required.

Requests for Video and Audio. You are required to furnish blank recording tapes, (or discs) of sufficient quality, to allow reproduction of the requested material. The material will be provided to you within a reasonable amount of time.

Requests for Electronic Media If you choose to obtain a copy of a public record that is in an electronic format, the City may require that you pay in advance the cost involved in providing the copy. You may choose to have the public record duplicated upon paper, upon the same medium upon which the City keeps it, or upon any other medium upon which the City determines that it reasonably can be duplicated as an integral part of the normal operations of the City.

If the party receiving your request does not have the authority to respond to the request, or have custody of the requested documents, he or she will obtain the necessary information from you to fulfill the request and the record request will be responded to, as appropriate, in a reasonable amount of time given the nature and the circumstances of the request. You are not required to give your name or the reason for your request.

If the City cannot reasonably identify what public records are being requested, the City will explain to you the manner in which records are maintained and accessed in the ordinary course of the public office and you will be given an opportunity to revise the request.

If a public record contains information that is exempt from public inspection, the City shall make available all of the information within the public record that is not exempt and you will be notified if any information is redacted or the redaction will be made plainly visible.

If it is not clear whether the record you requested is one that can be released, the City will allow inspection or provide copies to the extent permissible as soon as legal counsel has had an opportunity to review the request.

A department within the City may establish its own policy for charging for postage and copies provided the costs (if any) is limited to the actual cost of postage and cost of copying. It is the City's policy to charge for any copies. If a request includes a request to mail the information the requestor must pay the cost of mailing. Cost of copying is currently \$.10/per page for standard copies. The first 24 pages of copies are free. Any copies over 24 you will be charged for all copies. The City may require payment in advance. The City will require payment in full at time of distribution. Public records requests may be submitted to the City Records Manager at 320 W. Central Avenue, Springboro, Ohio 45066 or recordscommission@cityofspringboro.com or directed to the pertinent City Department.